City of TORRANCE

Date: September 1, 2026

To: Honorable Mayor and Members of the City Council

From: Michelle Ramirez, Community Development Director

By: Austin Lujan, Planning Assistant | ALujan@TorranceCA.Gov

Subject: Community Development – Adopt **RESOLUTION** to Deny the Appeal and Denial of a Minor Hillside Exemption to Allow a Proposed 694 Square Foot Attached Garage Located on the North Side of an Existing One-Story Single-Family Residence, on Property Located within the Hillside Overlay (R-H) in the Single-Family Residential District (R-1) Zone at 439 Via Linda Vista; (APN 7514-012-028), and Determine a Statutory Exemption from the California Environmental Quality Act (CEQA). Expenditure: None.

RECOMMENDATION

Based on the City Council's direction at their meeting date of August 11, 2026, it is the recommendation of the Community Development Director that City Council:

1. Adopt a **RESOLUTION** to deny the appeal and deny Minor Hillside Exemption (MHE25-00051) to allow a proposed 694 square foot attached garage located on the north side of an existing one-story single-family residence, on property located within the hillside overlay (R-H) in the Single-Family Residential District (R-1) Zone at 439 Via Linda Vista; and
2. Determine the project is statutorily exempt from California Environmental Quality Act (CEQA) pursuant to CEQA State guideline, Section 15270(a) – Project Which Are Disapproved.

FUNDING

None required.

DISCUSSION

On August 11, 2026, City Council conducted a public hearing to consider the subject appeal. During the hearing, City staff presented the project, and oral testimony was received from the party with the burden proof (homeowners), the party opposing (neighbors), and members of the public. Following Council deliberation, a motion to deny the appeal and deny the requested administrative action for the proposed 694 square foot attached garage passed by a unanimous 4-0 with two Councilmembers recused and one vacant seat.

Staff had prepared a resolution to uphold the appeal and approve the project. However, because the City Council voted to deny the appeal and deny the project, a revised resolution incorporating the Council's findings were required and scheduled to be brought back for adoption at a subsequent meeting.

Attached is the revised resolution, which includes the findings supporting denial as discussed and directed by the City Council.

ENVIRONMENTAL FINDINGS

Staff has determined that this project is statutorily exempt from the requirements of CEQA and the State CEQA Guidelines pursuant to Section 15270(a) of the CEQA Guidelines because CEQA does not apply to projects which a public agency rejects or disapproves.

ATTACHMENT

1. Resolution for Denial of Minor Hillside Exemption (MHE25-00051)

ATTACHMENT 1

Resolution For Denial

RESOLUTION NO. 2026-

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF TORRANCE, CALIFORNIA, DENYING AN APPEAL AND DENIAL OF A MINOR HILLSIDE EXEMPTION AS PROVIDED FOR IN DIVISION 9, CHAPTER 1, ARTICLE 41 OF THE TORRANCE MUNICIPAL CODE FOR A PROPOSED 694 SQUARE FOOT ATTACHED GARAGE LOCATED ON THE NORTH SIDE OF AN EXISTING ONE-STORY SINGLE-FAMILY RESIDENCE, ON PROPERTY LOCATED WITHIN THE HILLSIDE OVERLAY IN THE SINGLE FAMILY RESIDENTIAL DISTRICT (R-1) ZONE AT 439 VIA LINDA VISTA.

MHE25-00051: BINH WONG (SAMUEL & MARIA GONG)

WHEREAS, an application was filed on August 18, 2025, by Binh Wong (Samuel and Maria Gong) for consideration by the Community Development Director of a Minor Hillside Exemption permit (MHE25-00051) for a proposed 694 square foot attached garage located on the north side of an existing one-story single-family residence, on property located within the Hillside Overlay in the Single Family Residential District (R-1) Zone at 439 Via Linda Vista; and

WHEREAS, the Community Development Director approved MHE25-00051 on November 3, 2025; and

WHEREAS, an appeal to the Planning Commission was filed on November 13, 2025; and

WHEREAS, the Planning Commission of the City of Torrance conducted a duly noticed public hearing on January 8, 2026, to consider an appeal of the Community Development Director's approval of MHE25-00051; and

WHEREAS, at the Planning Commission meeting of January 21, 2026, a motion to uphold the appeal and denying without prejudice of MHE25-00051, passed by a call vote of 7 to 0; and

WHEREAS, the Planning Commission meeting of February 18th, 2026, a resolution of denial was signed and approved; and:

WHEREAS, an appeal to the City Council was filed on March 3rd, 2026; and

WHEREAS, due and legal publication of notice was given to owners of property in the vicinity thereof and due and legal hearings have been held, all in accordance with provisions of Division 9 Chapter 1, Article 41 of the Torrance Municipal Code; and

WHEREAS, the City Council of the City of Torrance conducted a public hearing on August 11th, 2026, consider an application filed by Binh Wong (Samuel and Maria Gong) for consideration by the Community Development Director of a Minor Hillside Exemption permit (MHE25-00051) for a proposed 694 square foot attached garage located on the north side of an existing one-story single-family residence; and

WHEREAS, on August 11th, 2026, the City Council of the City of Torrance by roll call vote of 4 to 0 with two Councilmembers recused and one vacant seat, denied the appeal without prejudice and denied the subject request; and

NOW, THEREFORE, the City Council of the Torrance does hereby find and determine as follows:

a) That the property is located at 439 Via Linda Vista (APN 7514-012-028);

b) That the property is described as Lot 28 of Tract 10302 as per map recorded in the Office of the Los Angeles County Recorder, State of California;

c) That the denial of the project is deemed Statutorily Exempt per the Guidelines for Implementation of the California Environmental Quality Act (CEQA); Article 18, Section 15270 (Projects Which Are Disapproved);

d) That the proposed garage complies with the objective development standards of the R-1 Zone and is consistent with the Low Density Residential (R-LO) designation of the Land Use Element of the General Plan of the City of Torrance;

e) That the proposed garage may as presented have a substantial adverse impact upon the view, light, air, and privacy of other properties in the vicinity;

f) That the proposed garage, as presented without a completed roof plan, has not been located, planned and designed so as to cause the least intrusion on the views, light, air, and privacy of other properties in the vicinity;

g) That the architectural design of the proposed garage will not provide an orderly and attractive development in harmony with other properties in the vicinity;

h) That without a completed roof plan, the design of the proposed garage would have a harmful impact upon the land values and investments of other properties in the vicinity due to the Planning Commission's inability to fully analyze the presented project;

i) That granting such application would be materially detrimental to the public welfare and to other properties in the vicinity;

j) That the proposed garage would cause or result in an adverse cumulative impact on other properties in the vicinity;

INTRODUCED, APPROVED and **ADOPTED** at the regular meeting of the City Council of the City of Torrance held on the 1st day of September 2026.

_____
Mayor Sharon Kalani

APPROVED AS TO FORM:

ATTEST:

_____
Patrick Q. Sullivan, City Attorney

_____
Rebecca Poirier, MMC, City Clerk